

Lease Agreement

This Agreement made and entered into between [REDACTED] (Legal Name of Owner), "Owner" and [REDACTED], (Name(s) of Resident(s)), "Resident".

is effective when fully executed by all parties. The Owner's obligation to deliver possession to Resident is conditioned on Resident making all payments due at or prior to move in under this Lease Agreement.

The following definitions apply throughout the Lease Agreement, except when these terms appear without quoted statutory language. In that case, the terms have the meaning intended by law.

Premises means entire property, i.e., the parcel of land and anything on it.

Building means the structure in which the Resident's rental unit is located.

Rental Unit means the area to which the Resident has the exclusive right of possession.

The Parties Agree as Follows:

- 1. Rental Unit:** Subject to the terms and conditions of this Lease Agreement, Owner/Agent rents to Resident and Resident rents from Owner/Agent, for residential use only, the rental unit located at: [REDACTED] (if applicable), [REDACTED]. Garage/Carport [REDACTED] (if applicable)
- 2. Term:** The term of this Lease Agreement begins on 10/27/2025 and ends on 10/26/2026. Any holding over thereafter shall result in the Resident being liable to Owner/Agent rental damages equal to the 1/30th of the current market value of the rental unit per day until the rental unit is vacated or 30 days whichever is later. A "month-to-month" tenancy subject to terms and conditions of this lease agreement shall be created only if Owner/Agent accepts rent from Resident thereafter, and if accepted, tenancy may be terminated by Resident after service upon Owner/Agent of a written 30 day Notice of Termination. Except as prohibited by law, that month-to-month tenancy may be terminated by the Owner/Agent by service upon the Resident a written 60-day notice of termination of tenancy. However, Civil Code Section 1946.1 provides that "If any Resident has resided in the rental unit for less than one year", the Owner/Agent may terminate the tenancy by service upon the Resident of a written 30-day notice.

Resident(s) initials here: [REDACTED]

- 3. Rent:** Rent is due in advance on or before the first day of each and every month, at **\$1,425.00** per month, beginning on 11/01/2025 payable to [REDACTED] and delivered to the Leasing Center at [REDACTED]. Telephone number for above address is [REDACTED]. Any rent not paid by the 1st of the month will be considered delinquent. Owner/Agent is authorized to report payment histories, outstanding debts, and/or lease status to third parties including any credit bureau.

Rent for any partial month shall be prorated at the amount of 1/30th of the monthly rent per day. Resident(s) that move in after the 20th of the month will be required to pay the prorated rent for the current month and the next full month's rent on or before the move in date.

Payments made in person may be delivered between the hours of **9:00 AM** and **5:00 PM** on the following days of the week:

☒ Monday ☒ Tuesday ☒ Wednesday ☒ Thursday ☒ Friday ☐ Saturday ☐ Sunday

Acceptable methods of payment: ☒ Personal Check ☒ Cashier's Check ☒ Money Order ☒ ACH ☒ Credit/Debit Card ☐ Walk-In Payment System at Participating Locations

No cash will be accepted at the rental community.

- 4. Payments:** Owner/Agent may apply any payment made by Resident to any obligation of Resident to Owner/Agent regardless of dates or other direction from the Resident that accompanies any such payment. Any attempt to allocate a payment in any other way shall be deemed null and void, including the use or application of a restrictive endorsement or limitation on any check or other payment. If payment is made by mail the resident bears the risk of



Lease Agreement

loss or delay of any payment made by mail and Owner/Agent must receive mailed rent payments on or before the due date, except as otherwise provided by law. If Resident chooses to deposit payment in night drop if available at the community, the Resident bears the risk of loss and Owner/Agent will not be liable for lost or stolen monies. In the absence of a signed acknowledgement that complies with Civil Code 1947.3, Owner/Agent will accept rent payments only from the Resident(s). Owner/Agent may require a separate signed acknowledgement for each rent payment made by a third party. Rent tendered by a Non-Resident shall be deemed rent tendered on behalf of Resident only and not on behalf of the Non-Resident. Should Owner/Agent elect to accept a payment that does not comply with this paragraph, this shall not be construed as a waiver of this provision. If Resident pays online, such payment shall be deemed to come from Resident regardless of the source of payment. Payment online may be rejected or returned by Owner/Agent during the pendency of any legal action, or anticipated legal action. Failure or refusal by Resident to cash Owner/Agent's rent refund check shall not defeat Owner/Agent's rejection for the rent being refunded.

5. **Change to Payment Method:** The Owner/Agent may refuse certain payment methods listed in the paragraph entitled "RENT" above, as the form a payment to cure a Three Day Notice to Pay Rent or Quit, Three-Day Notice to Perform Conditions and/or Covenants or Quit, a check passed on insufficient funds or dishonored for any other reason, or stopped payment and Owner/Agent may refuse certain methods for future rent payments thereafter.
6. **Security Deposit:** Prior to taking possession of the rental unit resident shall pay a total security deposit, in the amount of **\$1,000.00**. In most cases, a security deposit collected on or after July 1, 2024 may not exceed an amount equal to one month's rent. However, a owner who meets the following criteria may collect a security deposit in an amount equal to up to two months' rent: (1) the owner is a natural person, qualifying family trust, or a limited liability corporation in which all member are natural persons; and, (2) the owner owns no more than two residential rental properties that collectively include no more than four dwelling units offered for rent. Resident shall not use the security deposit to pay any month's rent. Under Civil Code 1950.5, Owner/Agent may withhold from the security deposit only such amounts as are reasonably necessary to remedy Resident defaults including, but not limited to, the following:
- i) The compensation of Owner/Agent for a resident's defaults in the payment of rent,
 - ii) The "repair damages to the premises, exclusive of ordinary wear and tear", caused by resident or by a guest or licensee of the resident.
 - iii) The "cleaning of the premises upon termination of the tenancy necessary to return the unit to the same level of cleanliness" it was in at the inception of the tenancy.
 - iv) To remedy future defaults by the resident in any obligation under the lease agreement to restore, replace, or return personal property or appurtenances, exclusive of ordinary wear and tear.

Except where a longer time is allowed by law, within 21 calendar days after Owner/Agent has regained possession of the rental unit, Owner/Agent shall furnish Resident a copy of an itemized statement indicating the basis for, and the amount of, any security deposit received and the disposition of the security deposit and shall return any remaining portion of such security deposit to Resident. Any remaining portion of the security deposit shall be returned in the form of a single check made out to all Residents listed above.

7. **Late Fees and Insufficient Funds:** If rent is paid after the **3rd** day of the month, there will be a late charge of **\$100.00** assessed. This late charge does not establish a grace period. The parties agree that the late fee is presumed to be the amount of damage sustained by the late payment of rent. It would be impracticable or extremely difficult to fix the actual damage sustained by the breach of the late rent payment. The parties further agree that the sum represents a reasonable endeavor by the Owner/Agent to estimate fair average compensation for any loss that may be sustained as a result of late payment of rent. Failure to pay this fee is a material breach of this Lease Agreement. If rent is not paid by the 1st, the Lease Agreement is in default even if the late charge is not assessed. Pursuant to California law, if Resident passes a check on insufficient funds, Resident will be liable to Owner/Agent for the amount of the check and a service charge of \$25.00. Resident shall replace dishonored payment with a money order, certified check or cashier's check.
8. **Guarantee:** Resident ☐ is ☒ is not required to have a Guarantor for the duration of the Resident's residency. If no box is checked, Resident is not required to have a Guarantor. The Guarantor shall be liable for rent and any damages, financial or physical, caused by the Resident, including all legal fees incurred by Owner/Agent in enforcing this Agreement. If a Guarantor is required, this Agreement will not take effect unless a fully executed guarantor agreement is attached.





Lease Agreement

9. Rental Unit Availability: In the event the rental unit is not available on the move-in date due to a prior Resident holding over, or other cause not within the control of the Owner/Agent, Resident's damages will be limited to a return of security deposit, any holding or other deposits and any advance payment of rent.

10. Occupants: The rental unit shall be occupied only by the following named person(s):

██████████ Name	██████████ Birth Date	Name	Birth Date
Name	Birth Date	Name	Birth Date
Name	Birth Date	Name	Birth Date
Name	Birth Date	Name	Birth Date
Name	Birth Date	Name	Birth Date
Name	Birth Date	Name	Birth Date
Name	Birth Date	Name	Birth Date

11. Guest(s): Except as otherwise provided by prior written agreement, any person who is not listed as an Occupant on this Lease Agreement is a Guest. A Guest may not stay in the rental unit for more than fourteen (14) consecutive days, or a total of twenty-one (21) days in a twelve (12) month period. At the discretion of the Owner/Agent, Guest(s) who overstay this limit may be required to go through the application process, and if approved, must sign a Lease Agreement. A guest who has not signed a Lease Agreement is not a "tenant" for the purpose of Civil Code Section 1947.12. Resident is responsible for any violation of this Lease Agreement by the Resident's Guests.

- 12. Unlawful Activity:** Resident, Occupants and any guest or other persons under the Resident's control shall not
- i) on or near the premises engage in any:
 - a. criminal activity, including drug-related criminal activity. "Drug-related criminal activity" means the illegal manufacture, sale, distribution, use, or possession with intent to manufacture, sell, distribute, or use of a controlled substance (as defined in section 102 of the Controlled Substance Act (21 U.S.C. 802)).
 - b. act intended to facilitate criminal activity, including drug-related criminal activity,
 - c. acts of violence or threats of violence, including, but not limited to the unlawful discharge of firearms.
 - ii) use the rental unit or premises or permit the rental unit or premises to be use by an person:
 - a. for, or to facilitate, criminal activity, including drug related criminal activity, engage in the manufacture, sale, or distribution of illegal drugs at any location, whether on or near premises and property or otherwise.
 - b. for an unlawful purpose as described in paragraph (4) of Section 1161 of the Code of Civil Procedure.
 - iii) Engage in any criminal activity or criminal threat (as defined in subdivision (a) of Section 422 of the Penal Code), on or off the premises, that is directed at any Owner/Agent of the premises.

A SINGLE VIOLATION OF ANY OF THE ABOVE PROVISIONS SHALL BE DEEMED A SERIOUS AND MATERIAL VIOLATION OF THIS LEASE AGREEMENT. IT IS UNDERSTOOD AND AGREED THAT A SINGLE VIOLATION SHALL BE GOOD CAUSE FOR TERMINATION OF THIS LEASE AGREEMENT. Unless otherwise provided by law, proof of violation shall not require criminal conviction but shall be a preponderance of the evidence.

- 13. Policies for Easy Living:**
- i) **Actions of Family Members and Guests:** Residents are responsible for the actions of their family members, guests and themselves and agree to reimburse Owner/Agent for any vandalism or damages caused by these

